

STATE OF NEW YORK

10835--A

IN ASSEMBLY

April 1, 2026

Introduced by M. of A. GRIFFIN -- read once and referred to the Committee on Governmental Employees -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the civil service law, in relation to prohibiting falsely impersonating an employee organization or employee organization representative

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The civil service law is amended by adding a new section 216 to read as follows:

§ 216. Falsely impersonating an employee organization or employee organization representative. 1. Definitions. As used in this section, the following terms shall have the following meanings:

(a) "Falsely impersonate an employee organization or employee organization representative" shall mean to use, with the specific intent to deceive the recipient and thereby cause harm to such recipient or employee organization, fraud, misrepresentation, material omission, or other deception in making and disseminating a verbal, written, or electronic communication that purports to be authorized or otherwise approved by such employee organization or employee organization representative but that has not been authorized or approved by such employee organization or employee organization representative.

(b) "Employee organization representative" shall mean any person authorized by an employee organization, pursuant to its constitution, bylaws or other internal rules or procedures, to act on behalf of such employee organization.

2. No person shall falsely impersonate an employee organization or an employee organization representative.

3. (a) Whenever the attorney general shall believe, from evidence satisfactory to the attorney general, that any person, including but not limited to an individual, organization, firm, corporation, company, partnership or association, or agent or employee thereof, has engaged or is about to engage in the false impersonation of an employee organization or an employee organization representative, the attorney general

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 may bring an action or proceeding in the name and on behalf of the
2 people of the state of New York to enjoin such unlawful acts or prac-
3 tices. In such action or proceeding, preliminary relief may be granted
4 under article sixty-three of the civil practice law and rules. In addi-
5 tion to and not in lieu of any other damages that may be claimed, any
6 person found to be in violation of this section through such action or
7 proceeding shall be fined one thousand dollars per incident; provided,
8 however, that a court shall have discretion to reduce the total fine if
9 the court finds that the amount of such fine is disproportionate to the
10 defendant's conduct.

11 (b) The attorney general may bring such an action against any person
12 disseminating verbal, written, or electronic communications in this
13 state, whether or not the person is within the state.

14 (c) In connection with any proposed action or proceeding under this
15 section, the attorney general is authorized to take proof and make a
16 determination of the relevant facts, and to issue subpoenas in accord-
17 ance with the civil practice law and rules.

18 4. To protect public employees from fraud or misrepresentation,
19 including the false impersonation of an employee organization represen-
20 tative, an employee organization shall have, as a matter of internal
21 governance, the sole authority to identify and designate its employee
22 organization representatives.

23 § 2. This act shall take effect immediately.